

SCHOOL BOARD NORMS, PROTOCOLS AND VIOLATIONS

The School Board adopts the following norms, protocols and defines violations to govern interactions by the School Board Members.

A. General Norms. School Board Members shall:

1. Speak candidly and courteously to each other and to staff. Listen to dissenting or different viewpoints with an open mind. Once the School Board reaches a decision, board members will refrain from taking action that interferes with the implementation of the decision made by the School Board except that at a meeting, and as permitted under parliamentary procedures, Board Members may seek to change or rescind prior Board action.

2. Not represent the School Board without the consent of the School Board.

a. If questioned about a matter on which policy has been clearly defined, an individual Board member shall answer based on policy or indicate they cannot speak for the Board.

b. If approached about a matter on which the Board has no established policy, individual Board members should not commit the Board to any position or promise other than to discuss the matter with staff or to present it to the Board for consideration.

3. Maintain awareness of the different roles that School Board Members play such as board member, citizen, parent, etc.

4. Be focused on policy and governance work as a School Board Member and not impede the day to day operations of Loudoun County Public Schools, so long as they remain the delegated responsibility of the Superintendent.

5. Maintain open communication with other School Board Members, the administration and the community-at-large. Information shall be shared through distribution by staff to avoid inadvertent violations of open meetings requirements. If considerable work or time is required to generate information requested from the administration by a Board Member, at least three (3) members of the School Board must endorse the request. Considerable work or time is defined as research that requires more than 60 minutes to generate.

6. Members will adhere to Policy 1030, A Code of Ethics for School Board Members. For example, confidential and privileged information and/or documents, information and discussions from a closed session, attorney-client privileged communication, and other confidential information shall not be disclosed without the prior written approval of the Board. In the event confidential or privileged information is released or otherwise disclosed, without the consent of the Board, then the Board shall

SCHOOL BOARD NORMS, PROTOCOLS AND VIOLATIONS

vote to either authorize the disclosure or reaffirm the confidentiality and/or claim of privilege. In addition, the Board may, in its discretion, reprimand or censure a member for improper disclosure of confidential or privileged information.

7. Notify in writing the Public Information Officer as soon as possible of any public records request received by the Board Member.

8. Comply with all applicable laws, Board policies and regulations.

9. Timely file the Statement of Economic Interests before assuming office and annually.

10. Complete Virginia Freedom of Information Act training within two months of assuming office and thereafter at least once during each consecutive period of two calendar years commencing on the date of the last training.

11. Complete the State and Local Government Conflict of Interests Act training within two months of assuming office and thereafter at least once in a consecutive two calendar year period commencing on the date of the last training.

12. Immediately report reasonable suspicions of child or student abuse or neglect in accordance with Policy 7530, Duty To Report Child or Student Abuse and Neglect.

13. Comply with federal and state laws regarding student privacy and the protection of student educational records. Posting images or information created and/or obtained about students in the educational context may violate a student's privacy rights.

14. Immediately report reasonable suspicions of sexual harassment to the school division's Title IX Coordinator.

B. Social Media Norms. Social media can be a positive tool for School Board Members to foster community engagement. While the School Board and Loudoun County Public Schools are not responsible for the online activity of individual School Board Members, School Board Members are to operate within this policy when communicating regarding division matters through social media. School Board Members shall bear in mind that their behavior and interactions on social media reflect not only on them as elected officials, but on the School Board and Loudoun County Public Schools as a whole.

1. School Board Members shall indicate that they are communicating as an individual member of the School Board and that their statements reflect their own views and not necessarily the official position of the School Board or that of Loudoun County Public Schools. School Board Members shall only post on behalf of the division if

SCHOOL BOARD NORMS, PROTOCOLS AND VIOLATIONS

delegated to do so by the School Board or if they are re-posting information already publicly released by LCPS.

2. School Board Members shall keep in mind that they may be perceived by the public as an official spokesperson for the division even if that is not the Member's intention. As such, School Board Members shall not post information not verified or has not been made available to the public and shall never post anonymously about the division business.

3. School Board Members shall encourage community input through appropriate channels, as listed in the Protocol for Responding to Parent/Guardian Concerns or other adopted policies and procedures.

4. While School Board Members may have preliminary policy positions on matters, they shall keep an open mind and listen to other Members and staff before forming a final position on such matters pending before the School Board. Employee and student disciplinary hearings require School Board Members to remain impartial until the end of the hearing and to limit decisions to only the evidence admitted at the hearing. Members shall remain sensitive to any relationships which shall impact their impartiality and the need to not participate in a specific case.

5. Using personal social media accounts for the purposes of creating an interactive dialogue with the public, about School Board or committee business, may carry with it First Amendment protections that may create a risk of liability for the improper administration of the account. In addition, all discussions of business shall be retained under the applicable records retention schedule of the Library of Virginia.

C. Protocols. School Board Members will adhere to the following:

1. When receiving requests for information or complaints from parents/guardians or members of the public outside of the Public Comment procedures of a School Board meeting, School Board Members shall adhere to its Protocol for Responding to Parent/Guardian Concerns. At minimum, School Board Members shall remain impartial in the event that the situation may be brought before the School Board, particularly personnel and student matters.

2. School Board Members may contact each other one-on-one. However, School Board Members shall not assemble in groups of more than two outside of a public meeting and discuss public business. In addition, a quorum of a School Board committee shall not assemble outside of a public meeting and discuss that committee's business, even if a quorum is only two Members.

3. Meetings, virtual or otherwise, between no more than two individual School Board Members and the Superintendent are encouraged provided the two

SCHOOL BOARD NORMS, PROTOCOLS AND VIOLATIONS

members are not the quorum of a committee and that committee's business in being discussed.

4. School Board Members serving as Chair of School Board committees are to regularly report on the work of those committees at public meetings of the School Board.

5. School Board Members may respond to questions from the media related to their personal position on an issue but must clearly indicate they are speaking for themselves and not for the School Board. Examples of personal position issues include:

- a. The Board Member's vote on a particular motion;
- b. The Board Member's campaign positions; and
- c. Current events.

6. School Board Members are encouraged to attend school activities when possible, and to visit schools periodically to maintain contact with building employees and increase understanding of actual educational practices.

- a. Unless invited by the building principal, shall notify the building principal in advance of school visits. Upon arrival at the school, School Board Members shall check in at the main office during the school day. This does not apply when a Member has their own child enrolled in the school and they visit the school for personal reasons only.
- b. After checking in for a school visit, School Board Members shall not go unannounced into a classroom unless attending a scheduled activity or attending to a parental duty.
- c. School Board Members may make an official visit to schools for the purpose of making observations and gathering information, but shall not give direction to employees of the schools.

7. School Board Members shall volunteer at schools, but must comply with any procedures for the on-boarding of school volunteers when visiting as a volunteer.

8. The Virginia's Standards of Quality (SOQs) provide that each school board must require its Members to participate annually in high quality professional development activities at the state, local or national levels on governance. School Board Members are required to participate in these activities including, but are not limited to, personnel policies and practices; the evaluation of personnel, curriculum, and instruction; use of data in planning and decision

SCHOOL BOARD NORMS, PROTOCOLS AND VIOLATIONS

making; and current issues in education. School Board Members are to participate in at least six hours of professional development annually.

D. Violations. These procedures provide the process for disciplining of a School Board Member and supersede any other process to the contrary. Any School Board Member alleged to have violated any of the norms or protocols herein or any School Board policy, regulation, or law, may be addressed in closed session of the School Board. The Board Chair will notify the school board member(s) of their being the subject and content of the closed session. If a majority of the School Board Members find a violation has occurred, the School Board may issue one or more of the following or direct the Board Chair to do so on behalf of the Board:

1. A private or public warning; or
2. A private or public reprimand; or
3. Public censure; or
4. Removal from being a Chair of one or more committees; and/or
5. Removal from committees, which may result in loss of being a Chair of a committee.

Nothing in this section shall affect the Board Chair's authority with respect to committee assignments or committee Chairs, including removal therefrom.

Adopted: 4/20/21

Legal Refs: [Article VIII, Section 7, Constitution of Virginia](#), §§ [22.1-1](#); [22.1-2](#); [22.1-28](#); [22.1-71](#), & [22.1-253.13:7](#) of the Code of Virginia

Cross Refs: [Policy 1030, A Code of Conduct for SchoolBoard Members](#)
[Policy 7530, Duty to Report Child Abuse and Neglect](#)